



United States
Attorney's Office
Western District of New York



Former Western New York man pleads guilty to perjury for lying while testifying during his fraud trial

Tuesday, February 18, 2025

For Immediate Release

U.S. Attorney's Office, Western District of
New York

BUFFALO, N.Y. –Acting U.S. Attorney Joel L. Violanti announced today that Michael W. Luehrsen, 41, of Miami, Florida, pleaded guilty before U.S. District Judge Lawrence J. Vilardo to perjury, which carries a maximum penalty of five years in prison. As part of his plea, Luehrsen has agreed to pay approximately \$2-million dollars in restitution and forfeit approximately \$2-million dollars in assets, including investments and real estate proceeds.

Assistant U.S. Attorneys Charles M. Kruly and Grace Carducci, who is handling the case, stated that in February 2022, Luehrsen testified under oath in his previous jury trial before the United States District Court for the Western District of New York as follows:

Q. Mike, I want to start by talking about your dad. You told Mr. Kruly that on the days that those prescriptions were faxed you were not in town, is that what you said?

A. That's correct.

Q. Can you tell the jury, where were you?

A. On June 27, 2014, I was actually in California visiting Cornerstone Pharmacy with two physicians. On July 11, of 2014, I was in Boston, Massachusetts.

Q. And how do you remember that?

A. I have photographs from my phone showing me in those particular cities.

Evidence from Luehrsen's cellular telephone shows that the testimony quoted above was false. Photographs on the cell phone establish that he was, in fact, in Buffalo on July 11, 2014. In addition, telephone records and financial records established that Luehrsen was in Buffalo on that date. At the

time of this testimony, Luehrsen was being tried for, among other crimes, conspiring to commit health care fraud. It was a matter material to the trial whether or not Luehrsen was in Buffalo when an altered compound prescription form was faxed from his father’s home located in the Western District of New York.

The plea is the result of an investigation by the Federal Bureau of Investigation, under the direction of Special Agent-in-Charge Matthew Miraglia.

Sentencing is scheduled for June 27, 2025, before Judge Vilardo.

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Updated February 18, 2025

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Western District of New York

